

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 2

AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 35-33-7-6, AS AMENDED BY P.L.111-2024, SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 6. (a) Prior to the completion of the initial hearing, the judicial officer shall determine whether a person who requests assigned counsel is indigent under section 6.5 of this chapter. If the person is found to be indigent, the judicial officer shall assign counsel to the person.

(b) If jurisdiction over an indigent defendant is transferred to another court, the receiving court shall assign counsel immediately upon acquiring jurisdiction over the defendant.

(c) If the court finds that the person is able to pay part of the cost of representation by the assigned counsel, the court shall order the person to pay the following:

(1) For a felony action, a fee of two hundred dollars (\$200).

(2) For a misdemeanor action, a fee of one hundred dollars (\$100).

However, a court may order a person to pay the fees described in this subsection without an indigency hearing if the person has paid a cash bond and executed an agreement under IC 35-33-8-3.2 allowing the court to retain all or a part of the cash to pay publicly paid costs of representation and fines, costs, fees, and restitution.

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(d) If the court orders the person to pay an amount described in subsection (c)(1) or (c)(2), the court shall inquire at sentencing whether the person has paid the required amount.

(e) The clerk of the court shall deposit the first one hundred dollars (\$100) in a felony case and the first fifty dollars (\$50) in a misdemeanor case of the fees described in subsection (c) in the county's supplemental public defender services fund established by IC 33-40-3-1.

(f) The clerk of the court shall transfer the remaining one hundred dollars (\$100) in a felony case and the remaining fifty dollars (\$50) in a misdemeanor case of the fees described in subsection (c) to the state comptroller for deposit in the public defense fund established by IC 33-40-6-1.

(g) The court may review the finding of indigency at any time during the proceedings if:

- (1) the court receives evidence of a material change in the person's income or assets; or
- (2) the person has failed to provide the court with sufficient evidence, including documentary evidence, to sustain the court's initial indigency determination.

SECTION 2. IC 35-33-7-6.5, AS AMENDED BY P.L.111-2024, SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 6.5. (a) In determining whether a person is indigent, the court shall consider the following:

- (1) The person's assets.
- (2) The person's income.
- (3) The person's necessary expenses.

(b) The court may consider that a person's eligibility for:

- (1) the federal Supplemental Nutrition Assistance Program (SNAP) (except for 21 U.S.C. 862a(a));
- (2) the federal and Indiana TANF (Temporary Assistance for Needy Families) program (except for 21 U.S.C. 862a(a)); or
- (3) another need based public assistance program;

constitutes sufficient evidence to establish that a person is indigent.

(c) The court may issue an initial indigency determination pending receipt of documentary or other evidence from the person concerning the person's income, assets, expenses, or welfare eligibility.

(d) Each court in a county receiving reimbursement under IC 33-40-6-5(c) shall require a person claiming indigency to submit a uniform form, prescribed by the office of judicial administration, to assist the court in determining whether the person is indigent. The court shall review or designate a staff member to review the form



submitted to ensure the accuracy of the information contained in the form before issuing an indigency determination under this section. The court may request any additional information needed from the person to verify the accuracy of the information submitted in the form.

(e) If the court finds that the person is able to pay some of the fines, fees, and court costs, the court may prorate the person's fine, fee, and court costs, and require the person to pay an amount that the person can reasonably afford.

(f) If a person has paid a cash bond and executed an agreement under IC 35-33-8-3.2 allowing the court to retain all or a part of the cash to pay publicly paid costs of representation and fines, costs, fees, and restitution, the court may retain these funds pursuant to the agreement without holding an indigency hearing.

SECTION 3. IC 35-33-8-2, AS AMENDED BY P.L.41-2018, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 2. **(a)** Murder is not bailable if the state proves by a preponderance of the evidence that the proof is evident or the presumption strong.

(b) Offenses other than murder are not bailable if the state proves at a hearing under section 3.7 of this chapter:

(1) by a preponderance of the evidence that the proof is evident or the presumption strong for the charged offense; and

(2) by clear and convincing evidence that:

(A) the arrestee poses a substantial risk to the safety of any other person or the community; and

(B) no conditions of release will reasonably protect the safety of any other person or the community.

(c) In all other cases, offenses are bailable as provided in this chapter.

SECTION 4. IC 35-33-8-3.2, AS AMENDED BY P.L.205-2023, SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 3.2. (a) After considering the results of the Indiana pretrial risk assessment system (if available), other relevant factors, and bail guidelines described in section 3.8 of this chapter, a court may admit a defendant to bail and impose any of the following conditions to assure the defendant's appearance at any stage of the legal proceedings, or, upon a showing of clear and convincing evidence that the defendant poses a risk of physical danger to another person or the community, to assure the public's physical safety:

(1) Require the defendant to:

(A) execute a bail bond with sufficient solvent sureties;



- (B) deposit cash or securities in an amount equal to the bail;
- (C) execute a bond secured by real estate in the county, where thirty-three hundredths (0.33) of the true tax value less encumbrances is at least equal to the amount of the bail;
- (D) post a real estate bond; or
- (E) perform any combination of the requirements described in clauses (A) through (D).

If the court requires the defendant to deposit cash or cash and another form of security as bail, the court may require the defendant and each person who makes the deposit on behalf of the defendant to execute an agreement that allows the court, **without holding an indigency hearing**, to retain all or a part of the cash to pay publicly paid costs of representation and fines, costs, fees, and restitution that the court may order the defendant to pay if the defendant is convicted. Before execution of the agreement, the defendant or person who makes the deposit on behalf of the defendant shall be advised that, upon conviction of the defendant, the court may retain from the cash deposited as bail all or a part of the cash to pay publicly paid costs of representation and fines, costs, fees, and restitution that the court may order the defendant to pay if the defendant is convicted. The defendant must also pay the fee required by subsection (d).

(2) Require the defendant to execute:

- (A) a bail bond by depositing cash or securities with the clerk of the court in an amount not less than ten percent (10%) of the bail; and
- (B) an agreement that allows the court to retain all or a part of the cash or securities to pay fines, costs, fees, and restitution that the court may order the defendant to pay if the defendant is convicted.

A portion of the deposit, not to exceed ten percent (10%) of the monetary value of the deposit or fifty dollars (\$50), whichever is the lesser amount, may be retained as an administrative fee. The clerk shall also retain from the deposit under this subdivision fines, costs, fees, and restitution as ordered by the court, publicly paid costs of representation that shall be disposed of in accordance with subsection (b), and the fee required by subsection (d). In the event of the posting of a real estate bond, the bond shall be used only to insure the presence of the defendant at any stage of the legal proceedings, but shall not be foreclosed for the payment of fines, costs, fees, or restitution. The individual posting bail for the defendant or the defendant



admitted to bail under this subdivision must be notified by the sheriff, court, or clerk that the defendant's deposit may be forfeited under section 7 of this chapter or retained under subsection (b).

(3) Impose reasonable restrictions on the activities, movements, associations, and residence of the defendant during the period of release.

(4) Except as provided in section 3.6 of this chapter, require the defendant to refrain from any direct or indirect contact with an individual and, if the defendant has been charged with an offense under IC 35-46-3, any animal belonging to the individual, including if the defendant has not been released from lawful detention.

(5) Place the defendant under the reasonable supervision of a probation officer, pretrial services agency, or other appropriate public official. If the court places the defendant under the supervision of a probation officer or pretrial services agency, the court shall determine whether the defendant must pay the pretrial services fee under section 3.3 of this chapter.

(6) Release the defendant into the care of a qualified person or organization responsible for supervising the defendant and assisting the defendant in appearing in court. The supervisor shall maintain reasonable contact with the defendant in order to assist the defendant in making arrangements to appear in court and, where appropriate, shall accompany the defendant to court. The supervisor need not be financially responsible for the defendant.

(7) Release the defendant on personal recognizance unless:

(A) the state presents evidence relevant to a risk by the defendant:

(i) of nonappearance; or

(ii) to the physical safety of the public; and

(B) the court finds by a preponderance of the evidence that the risk exists.

(8) Require a defendant charged with an offense under IC 35-46-3 to refrain from owning, harboring, or training an animal.

(9) Require a defendant to participate in a mental health referral program under IC 33-23-18.

(10) Impose any other reasonable restrictions designed to assure the defendant's presence in court or the physical safety of another person or the community.

(b) Within thirty (30) days after disposition of the charges against the defendant, the court that admitted the defendant to bail shall order



the clerk to remit the amount of the deposit remaining under subsection (a)(2) to the person who made the deposit. The portion of the deposit that is not remitted to the person who made the deposit shall be deposited by the clerk in the supplemental public defender services fund established under IC 33-40-3.

(c) For purposes of subsection (b), "disposition" occurs when the indictment or information is dismissed or the defendant is acquitted or convicted of the charges.

- (d) Except as provided in subsection (e), the clerk of the court shall:
- (1) collect a fee of five dollars (\$5) from each bond or deposit required under subsection (a)(1); and
 - (2) retain a fee of five dollars (\$5) from each deposit under subsection (a)(2).

The clerk of the court shall semiannually remit the fees collected under this subsection to the board of trustees of the Indiana public retirement system for deposit in the special death benefit fund. The fee required by subdivision (2) is in addition to the administrative fee retained under subsection (a)(2).

(e) With the approval of the clerk of the court, the county sheriff may collect the bail posted under this section. The county sheriff shall remit the bail to the clerk of the court by the following business day and remit monthly the five dollar (\$5) special death benefit fee to the county auditor.

(f) When a court imposes a condition of bail described in subsection (a)(4):

- (1) the clerk of the court shall comply with IC 5-2-9; and
- (2) the prosecuting attorney shall file a confidential form prescribed or approved by the office of judicial administration with the clerk.

(g) The clerk of the court shall record the name, address, and bail agent license number, if applicable, of the bail agent or a person authorized by the surety posting bail for the defendant in the county court electronic case management system.

SECTION 5. IC 35-33-8-3.4, AS ADDED BY P.L.197-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 3.4. (a) This section applies only to a violent arrestee. ~~or a repeat violent arrestee.~~

(b) The following definitions apply throughout this section:

- (1) "Crime of violence" means an offense:
 - (A) described in IC 35-50-1-2(a); and
 - (B) that is a Level 1, Level 2, Level 3, Level 4, or Level 5 felony.



(2) "Repeat violent arrestee" means a person arrested for or charged with a crime of violence who has a prior conviction for a crime of violence.

(3) (2) "Violent arrestee" means a person arrested for or charged with a crime of violence.

(c) A violent arrestee ~~or a repeat violent arrestee~~ may only be released on bail set individually by the court following a hearing held in open court. Before releasing a violent arrestee ~~or a repeat violent arrestee~~ on bail, the court must:

(1) review the probable cause affidavit or arrest warrant; and

(2) ~~impose money bail payable by surety bond or cash deposit.~~

(2) set an amount for money bail, the full amount which must be payable by:

(A) surety bond;

(B) cash deposit; or

(C) a combination surety bond and cash deposit.

(d) In accordance with IC 27-10-2-4.5(g)(2), a charitable bail organization may not pay money bail imposed under this section on behalf of a violent arrestee. ~~or a repeat violent arrestee.~~

SECTION 6. IC 35-33-8-3.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: **Sec. 3.7. (a) This section does not apply to a charge of murder. A person charged with murder shall be detained as provided in section 2 of this chapter.**

(b) For a charge other than murder, on motion of the state at or before an initial hearing, the court shall hold a hearing to determine whether an arrestee shall be denied bail. The state may request detention of the arrestee at a later date if it files a verified petition alleging the existence of new information that was unknown or unavailable at the time of the initial hearing.

(c) The court shall hold the bail hearing described in subsection (b) not later than forty-eight (48) hours from the time of filing, unless doing so is impracticable. However, the court may grant a continuance of:

(1) not more than five (5) days, if requested by the arrestee; and

(2) not more than three (3) days, if requested by the state.

Computation of time under this subsection does not include Saturday, Sunday, or any day on which a legal holiday is observed for state employees as provided under IC 1-1-9.

(d) At the bail hearing, the arrestee has the right to be represented by counsel and, if the arrestee is indigent, to have



counsel appointed.

(e) In making a determination of whether to deny bail, a court shall consider the following factors, in addition to any other fact or circumstance relevant to reasonably assuring appearance and the safety of any other person or the community:

(1) The nature and circumstances of the offense charged, including whether the offense is an offense of violence or involves alcohol or drug abuse.

(2) The weight of the evidence against the arrestee.

(3) The history and characteristics of the arrestee, including:

(A) the character, physical and mental condition, family ties, employment, financial resources, length of residence in the community, community ties, past conduct, history relating to drug or alcohol abuse, and criminal history of the arrestee; and

(B) whether, at the time of the current alleged offense or at the time of the arrest of the arrestee, the arrestee was on probation, parole, community corrections, or release pending trial, sentencing, appeal, or completion of sentence for the commission of an offense under the laws of this state, another state, or the United States.

(4) The nature and seriousness of the danger to any person or the community that would be posed by the arrestee's release.

(5) The availability, suitability, and effectiveness of less restrictive alternatives to detention and specific conditions of release that could reasonably mitigate the identified risk.

(6) Any other fact or circumstance that is relevant to reasonably assuring the appearance of the arrestee and the safety of any other person or the community.

(f) If the court denies bail under this section, the court shall issue written findings and conclusions setting forth reasons for the denial.

(g) No evidence or finding from a hearing under this section is admissible as substantive evidence at a trial concerning the offense for which the hearing was conducted. The evidence or findings may be admissible as impeachment or in a prosecution for perjury.

(h) If the court determines that an arrestee should not be denied bail, the court shall set terms of pretrial release for the arrestee in accordance with this chapter.

(i) An order granting or denying bail is a final appealable order.

(j) A court may reconsider an order granting or denying bail under this section if, at any time before trial, the court is made



aware of information that was unknown or unobtainable at the time of a previous hearing and that has a material bearing on the issue of whether there are conditions of release that will reasonably assure the safety of any other person or the community. The court may order a new hearing under this section upon motion of the state, the arrestee, or on its own motion.

SECTION 7. IC 35-33-8-3.8, AS ADDED BY P.L.187-2017, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 3.8. (a) A court shall consider the results of the Indiana pretrial risk assessment system (if available) before setting or modifying bail for an arrestee.

(b) If the court finds, based on the results of the Indiana pretrial risk assessment system (if available) and other relevant factors, that an arrestee does not present a substantial risk of flight or danger to the arrestee or others, the court shall consider releasing the arrestee without money bail or surety, subject to restrictions and conditions as determined by the court, unless one (1) or more of the following apply:

- (1) The arrestee is charged with murder or treason.
- (2) The arrestee is on pretrial release not related to the incident that is the basis for the present arrest.
- (3) The arrestee is on probation, parole, or other community supervision.
- (4) The arrestee is a violent arrestee as defined in section 3.4 of this chapter.**
- (5) The arrestee is a sexually violent predator defendant as defined in section 3.5 of this chapter.**
- (6) The arrestee has been denied bail pursuant to section 3.7 of this chapter.**
- (7) The arrestee is a foreign national who is unlawfully present in the United States as described in section 4.5 of this chapter.**

The court is not required to administer an assessment before releasing an arrestee if administering the assessment will delay the arrestee's release.



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

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